



**1137 S. PINE STREET
GRAPEVINE, TEXAS 76051
MAIN: (817) 789-8498
KATIE@COPELANDLAWTEXAS.COM**

APRIL 20, 2026

CHANDLER MERRITT
COUNTY ADMINISTRATOR
TARRANT COUNTY, TEXAS
100 E. WEATHERFORD STREET
FORT WORTH, TEXAS 76196

**RE: *FORMAL DEMAND REGARDING TITLE II ADA
COURT-ACCESS COMPLIANCE FAILURES,
PRESERVATION OF EVIDENCE, AND
REQUEST FOR ADMINISTRATIVE RESOLUTION***

Dear County Administrator:

I write to demand immediate administrative action regarding Tarrant County's ongoing failure to maintain and operate a coherent, accessible, Title II-compliant process for court-user accommodation requests affecting meaningful participation in court proceedings.

This letter is not a request for special treatment. It is a demand that Tarrant County identify and implement the administrative structure federal law already requires.

I. Nature of the problem

The recurring problem is not that one judge made one bad call. The problem is structural.

Tarrant County's current system appears to process hearings before it processes access. Requests affecting courtroom participation are routed into a fragmented space in which County personnel disclaim responsibility, court personnel lack clear coordinator information, no visible centralized intake or tracking system exists, no clear written grievance path is provided, and proceedings continue while access issues remain unresolved. See attached System Failure summary.

II. What federal law requires

Title II of the ADA requires public entities to maintain core compliance infrastructure, including:

- self-evaluation of services, policies, and practices, 28 C.F.R. § 35.105;
- public notice of ADA rights and obligations, 28 C.F.R. § 35.106;
- designation of a responsible employee to coordinate compliance and implementation of grievance procedures, 28 C.F.R. § 35.107; and
- meaningful access to programs, services, and activities, including effective communication and reasonable modification where required.

The Department of Justice has treated counties as responsible public entities for these obligations in formal ADA compliance reviews and settlements, including Galveston County, Texas, where DOJ reviewed self-evaluation, notice, coordinator designation, grievance procedures, program accessibility, effective communication, and related county responsibilities.

III. What I actually tried

I did not bypass the system. I repeatedly attempted to use and identify it.

A. County-level outreach

In January 2026, I attempted through counsel to discuss ADA Title II compliance issues affecting multiple Tarrant County courts before imminent hearings. The response from Assistant District Attorney Steve Lund was that Tarrant County had no authority or control over state district judges and that, in JP matters, the judge was the decision-maker on accommodation requests.

On March 30 and April 1, 2026, I contacted Assistant County Administrator Travis Yarbrough seeking clarification of who serves as the appropriate ADA decision-maker for court-user accommodations, how requests are processed across courts, and how the interactive process is initiated and documented. He responded that each presiding judge is their own decision-maker with regard to court proceedings, that he was not aware of how each court handles requests once notified, and that because the request concerned a court proceeding and not County ADA compliance, the response and direction to the court caused the County to consider the matter closed.

That response is not a functioning ADA pathway. It is an admission of fragmentation.

B. Court-level requests

In the 233rd District Court, I submitted a written request explaining that due to documented brain injury affecting cognitive processing, working memory, and real-time communication, I could not effectively participate in fast-paced, real-time adversarial hearings and requested written submission in lieu of live hearing, or a structured alternative with written participation safeguards. I expressly requested confirmation that my request was being evaluated under ADA procedures and a written determination identifying what accommodation would be provided.

The response was not an individualized evaluation. Instead, I was told the hearing would be in person, that Judge Newell does not review pleadings in advance and “thus we hold hearings in person,” and later that Judge Newell would not rule on a matter not properly presented during an in person setting.

In the 141st District Court, after asking who the ADA coordinator was and how confidential medical documentation should be routed, I was told by the court coordinator, “I’m not sure we have a designated ‘ADA Coordinator,’” and was given no clear administrative routing path.

C. Public records request

I submitted a Texas Public Information Act request seeking records relating to Tarrant County’s Title II self-evaluation, ADA coordinator designation, grievance procedures, Title II court-operation policies, and retention information. In response, the County produced employment-side ADA materials

and a general retention schedule rather than the Title II court-user infrastructure records actually requested. I then followed up in writing to clarify that my request concerned Title II county/courthouse obligations, not employment ADA.

The resulting record strongly suggests that Tarrant County has a more identifiable ADA structure for employees than for court users.

IV. Why this matters

This failure is not abstract.

When no coherent administrative pathway exists:

- disabled litigants must guess who decides access;
- requests affecting hearings are treated as courtroom preferences instead of civil-rights obligations;
- disability documentation lacks a clearly defined confidential route;
- no one entity owns the process from intake through determination;
- no written determination reliably issues before hearings proceed; and
- harm occurs before review becomes meaningful.

My experience reflects precisely that pattern.

V. Additional external indicators

The Department of Justice has publicly required Texas counties to adopt structured accessibility measures when county-operated public functions were found noncompliant, including in Travis County and Galveston County.

Tarrant County is also on notice that accessibility obligations are not limited to physical barriers. Title II applies to communication, policies, procedures, grievance systems, and programmatic access.

VI. Demand for corrective action

Accordingly, I demand that Tarrant County provide the following in writing no later than **5:00 p.m. on Thursday, April 30, 2026:**

1. the name, title, office address, telephone number, and email address of the person designated to coordinate Title II ADA compliance for court-user accommodation matters affecting Tarrant County courts;
2. the written policy or procedure governing intake, routing, evaluation, tracking, and resolution of court-user accommodation requests;
3. the written procedure for confidential submission and handling of disability documentation outside the public case file;
4. the written grievance or appeal procedure applicable to denial or non-resolution of such requests;
5. the County's Title II self-evaluation records, updates, or a written statement confirming whether no such records presently exist;
6. the County's public notice materials relating to court-user ADA rights and accommodations;
7. identification of any training materials used for judges, court coordinators, clerks, or County personnel regarding Title II accommodation requests affecting court participation;
8. confirmation that all relevant records are being preserved, including emails, forms, logs, website materials, coordinator materials, routing instructions, grievance records, accessibility audits, and communications regarding County versus judicial responsibility; and
9. identification of the person authorized to discuss administrative resolution and settlement of these issues.

VII. Preservation demand

Please preserve all documents and electronically stored information relating to:

- ADA court-user accommodation requests;
- ADA/public accommodation forms and website content;
- accessibility audits or website accessibility testing;
- ADA coordinator designation;
- grievance procedures;
- Title II self-evaluation;
- employee/public ADA policy distinctions;
- communications concerning County or judges responsibility;
- all communications involving my requests specifically; and
- any internal communications regarding court-user accommodations, routing, confidentiality, denial, or closure of requests.

This preservation demand includes email, text messages, internal chats, portal records, metadata, website revision history, logs, drafts, attachments, and archived materials.

VIII. Opportunity to resolve this without further escalation

I am providing Tarrant County an opportunity to correct and resolve this matter administratively before further action is taken.

If Tarrant County believes a lawful, centralized, functioning process already exists, this is the time to identify it clearly and document it. If it does not exist, the County should say so and move immediately toward corrective action.

Please direct the written response to me at the contact information below by the deadline stated above.

Respectfully,



Kathryn “Katie” Copeland

State Bar No. 24086056

(817) 789-8498

Katie@CopelandLawTexas.com

**Exhibit 1 -
2026.04.01 Yarbrough Email**

Re: ADA Justice Issue

From Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov>

To katie@copelandlawtexas.com

Date Wednesday, April 1st, 2026 at 3:03 PM

The presiding Judge over each court is their own decision maker with regards to court proceedings. I am not aware of how each court handles their request once they get notified.

Since it is a court proceeding request and not falling under the County's ADA compliance the response and directing them to the court then considers the matter closed.



Travis Yarbrough

Assistant County Administrator

100 E Weatherford St. Suite 404

Fort Worth, TX 76196

Phone: 817-884-2643

Email: thyarbrough@tarrantcountytx.gov

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, March 30, 2026 4:13 PM

To: Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov>

Subject: Re: ADA Justice Issue

EXTERNAL EMAIL ALERT! Think Before You Click!

Hi Mr. Yarbrough,

Thank you for your response.

This is related in part to my earlier request, but it also concerns an ongoing and active access issue in a current civil matter in the 141st District Court (Cause No. 141-370402-25).

The issue I am encountering is not limited to a single court, but appears to involve a broader gap in how ADA accommodation requests are received, routed, and resolved for court users at the county level.

In my current case, I have made repeated requests for accommodations necessary for meaningful participation due to documented cognitive limitations. However, there has been no clear ADA coordination pathway, no identified decision-maker, and no interactive process through which those requests are evaluated.

As a result, proceedings have continued while access issues remain unresolved.

At this point, I am trying to identify:

- who serves as the appropriate ADA decision-maker for court-user accommodations at the county level;

- how requests are supposed to be processed across courts; and
- how an interactive process is initiated and documented.

If this falls within your scope, I would appreciate your guidance. If not, I would be grateful if you could direct me to the appropriate individual responsible for ADA coordination in this context.

I appreciate your time and your help in clarifying this.

Best regards,

Kathryn "Katie" Copeland
(817) 789-8498

On Friday, March 27th, 2026 at 2:17 PM, Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov> wrote:

Good afternoon Ms. Copeland,

I was given a message that you reached out to our office yesterday concerning an ADA question. I did find a request from you that went to Justice of the Peace court No. 3 earlier this year. Does this happen to be in relation to that request or something entirely different?



Travis Yarbrough

Assistant County Administrator

100 E Weatherford St. Suite 404

Fort Worth, TX 76196

Phone: 817-884-2643

Email: thyarbrough@tarrantcountytx.gov

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**Exhibit 2 -
2026.04.20 Cori James
141st Coordinator Email**

RE: 141-370402-25 - ORDER - Weinstein Management Co., etal vs. Kathryn Copeland

From Courts - 141st Judicial District Court <141stJDC@tarrantcountytx.gov>

To katie@copelandlawtexas.com

Date Monday, April 20th, 2026 at 3:47 PM

Are you talking about for the 141st (and Justice Gabriel)? Or for Judge Evans?

I'm not sure we have a designated "ADA Coordinator". Medical documentation for what? Anything filed for the case can be labeled sensitive and not made public in the case file. I guess I'm confused as to exactly what you are needing.

Cori James

Court Coordinator

141st District Court

100 N. Calhoun Street

Fort Worth, Texas 76102

817-884-1992

141stJDC@tarrantcountytx.gov

EXTERNAL EMAIL ALERT! Think Before You Click!
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Ms. James,

Thank you for your email. Can you please advise who the ADA Coordinator is for the court? I need to know their procedure for confidential medical documentation.

Sincerely,

Kathryn "Katie" Copeland

(817) 789-8498

Author, [*Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*](#), American Bar Association (2026)

On Monday, April 20th, 2026 at 9:30 AM, Courts - 141st Judicial District Court
<141stJDC@tarrantcountytx.gov> wrote:

Counselors,

Judge Evans, the presiding Judge of the Eighth Administrative Judicial Region, has issued an Order regarding Ms. Copeland's Motion to Recuse, see attached. Judge Evans has denied the motion. A copy of this Order will also be sent out by the District Clerk's office. Please let me know if you have any questions.

Cori James

Court Coordinator

141st District Court

100 N. Calhoun Street

Fort Worth, Texas 76102

817-884-1992

141stJDC@tarrantcountytx.gov

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, April 20, 2026 3:41 PM

To: Courts - 141st Judicial District Court <141stJDC@tarrantcountytx.gov>

Subject: Re: 141-370402-25 - ORDER - Weinstein Management Co., etal vs. Kathryn Copeland

**Exhibit 3 -
2026.04.07-14 Newell ADA Request Chain**

RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>
To katie@copelandlawtexas.com
CC Dawn Livingston<dawnl@kellydeckerlaw.com>, Kelly Decker<kelly@kellydeckerlaw.com>
Date Wednesday, April 8th, 2026 at 9:56 AM

Good morning,

Judge Newell does not review pleadings in advance that are not properly before him; thus we hold hearings in person.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Dear Ms. Wierzbicki,

I want to clarify and expand on my prior ADA accommodation request to ensure it is accurately understood and considered.

Due to a documented brain injury affecting cognitive processing, working memory, and real-time communication, my limitation is not limited to physical presence. I am unable to effectively participate in fast-paced, real-time adversarial hearings—whether in person or via Zoom—without significant risk of being unable to respond, process, or protect my rights.

Accordingly, my requested accommodation is to proceed via written submission and written responses in lieu of live hearing.

Alternatively, if a hearing is required, a structured format that allows meaningful participation, including:

- advance submission of all arguments in writing,
- limited and clearly defined issues,
- allowance for written responses in place of real-time argument where necessary.

This request is necessary to ensure meaningful access to the proceeding, not merely physical or technical access.

To date, I have not received a determination on this request. The response indicating that the hearing will be in person does not address whether my accommodation request has been considered or denied.

I respectfully request:

- confirmation that my request is being evaluated under ADA procedures, and
- a written determination identifying what accommodation will be provided.

I am willing to provide supporting documentation if needed and to work cooperatively to identify an effective accommodation.

Thank you for your attention to this matter.

Respectfully,

Kathryn "Katie" Copeland

(817) 789-8498

On Tuesday, April 7th, 2026 at 3:35 PM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Yes, this will be in person in Judge Newell's courtroom.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Wierzbicki,

I wanted to confirm that this is going to be an in-person hearing, correct?

Thank you.

Dawn Livingston, *Paralegal*

Kelly Decker Law, PLLC

6490 Camp Bowie Blvd.

Fort Worth, Texas 76116

www.kellydeckerlaw.com

T: (817) 348-9060

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From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Tuesday, April 7, 2026 3:24 PM

To: Dawn Livingston <dawnl@kellydeckerlaw.com>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; katie@copelandlawtexas.com

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Thank you.

Ms. Copeland?

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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From: Dawn Livingston <dawnl@kellydeckerlaw.com>
Sent: Tuesday, April 7, 2026 3:04 PM
To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>
Cc: Kelly Decker <kelly@kellydeckerlaw.com>; katie@copelandlawtexas.com
Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

Good afternoon,

Ms. Decker is available May 8th in the morning or afternoon.

Thank you!

Dawn Livingston, *Paralegal*

Kelly Decker Law, PLLC

6490 Camp Bowie Blvd.

Fort Worth, Texas 76116

www.kellydeckerlaw.com

T: (817) 348-9060

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From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Tuesday, April 7, 2026 8:46:30 AM (UTC-06:00) Central Time (US & Canada)

To: Katie Copeland <katie@copelandlawtexas.com>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Good morning,

My apologies, yes, May 8 at 9:00 or 1:30.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, April 6, 2026 5:18 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

I am not available that day. Did you mean May 8 instead of May 9 since the 9th is a Saturday?

Sincerely,

Kathryn "Katie" Copeland

(817) 789-8498

Author, [*Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*](#), American Bar Association (2026)

On Monday, April 6th, 2026 at 11:55 AM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Thank you.

Ms. Copeland, will this date work for you?

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Dear Ms. Wierzbicki, I am representing myself and my law firm. I am available 4-22 at 9a or 1:30p.

KWD

From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Monday, April 6, 2026 11:43 AM

To: Katie Copeland <katie@copelandlawtexas.com>; Kelly Decker <kelly@kellydeckerlaw.com>
Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Good morning,

Currently I have the following available:

April 22 at 9:00 or 1:30

May 5 at 9:00 or 1:30

May 9 at 9:00 or 1:30

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Thursday, April 2, 2026 2:36 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

Kelly Decker at is the Defendant and she is representing herself (to my understanding).

Sincerely,

Kathryn "Katie" Copeland

(817) 789-8498

On Wednesday, April 1st, 2026 at 4:41 PM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Good afternoon,

Per Judge Newell, please include all parties/attorneys so that I can provide dates for this setting no later than April 8, 2026. Failure to respond with all parties/attorneys included no later than April 8, 2026, your request for permission will be dismissed for want of prosecution on April 9, 2026.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

That's not really how this process works. Has the judge looked at this?

Katie

----- Original Message -----

On Friday, 03/20/26 at 10:13 Angie D. Wierzbicki <ADWierzbicki@tarrantcountytexas.gov> wrote:

Good morning,

Please include all parties/attorneys so that I can provide dates for this setting.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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RULE DOCUMENTS IF YOU ARE SET FOR A HEARING IN
EITHER COURT. FAILURE TO PROVIDE LOCAL COURT
RULE DOCUMENTS COULD RESULT IN THE RESET OF
YOUR CASE*****

**PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL
EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND
“REPLY ALL” WHEN REPLYING.**

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Thursday, March 19, 2026 8:20 PM

To: Kenneth E. Newell <KENewell@tarrantcountytx.gov>; Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Subject: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

You don't often get email from katie@copelandlawtexas.com. [Learn why this is important](#)

EXTERNAL EMAIL ALERT! Think Before You Click!

Judge Newell and Ms. Wierzbicki,

My name is Kathryn M. Copeland (State Bar No. 24086056). I am appearing pro se in multiple Tarrant County matters and am writing to request permission under Tex. Civ. Prac. & Rem. Code § 11.102 and to formally request ADA accommodations necessary to access this process.

I. REQUEST FOR PERMISSION

I have prepared and am submitting a Motion for Permission to Maintain Litigation, along with a proposed order and supporting materials.

These filings address:

- the nature of the claims,
- the procedural posture, and
- the basis for permission under § 11.102(b).

I respectfully request that the Local Administrative Judge grant permission to allow these matters to proceed.

II. ADA ACCOMMODATION REQUEST

I was advised that I would need to appear in person to seek relief. Due to documented disability, I am unable to do so.

Accordingly, I formally request the following reasonable accommodations pursuant to Title II of the ADA:

- Permission to proceed via written submission (this email and attached filings);
- A written or email response;
- If a hearing is required, the ability to participate remotely (Zoom or telephone).

III. CONTEXT

I am acting in good faith to comply with Chapter 11 while preserving my rights.

The underlying vexatious litigant determinations raise substantial jurisdictional and procedural issues that are being addressed through appropriate legal channels. In the meantime, I am seeking permission to proceed so that my claims are not lost due to procedural barriers.

Because void orders cannot properly restrict access to the courts, I respectfully request that permission be granted to ensure meaningful access while these issues are resolved.

IV. REQUEST

I respectfully request:

- consideration of my Motion for Permission under § 11.102;
- confirmation that my ADA accommodation request has been received; and
- guidance on any additional procedural steps required.

Thank you for your time and consideration.

Respectfully submitted,

KATHRYN M. COPELAND

State Bar No. 24086056

katie@copelandlawtexas.com

(817) 789-8498

Licensed Texas Attorney appearing pro se

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, March 23, 2026 4:24 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Subject: Re: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From: Kelly Decker <kelly@kellydeckerlaw.com>

Sent: Monday, April 6, 2026 11:55 AM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>; Katie Copeland <katie@copelandlawtexas.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From: Dawn Livingston <dawnl@kellydeckerlaw.com>

Sent: Tuesday, April 7, 2026 3:33 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; katie@copelandlawtexas.com

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Tuesday, April 7, 2026 11:35 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Dawn Livingston <dawnl@kellydeckerlaw.com>; Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

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RE: Threshold Jurisdictional Issue & ADA Interactive Process – Cause No. 236-363132-25

From Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>
To katie@copelandlawtexas.com
CC Dawn Livingston<dawnl@kellydeckerlaw.com>, Kelly Decker<kelly@kellydeckerlaw.com>
Date Tuesday, April 14th, 2026 at 7:49 AM

Good morning,

As previously stated, Judge Newell will not rule on a matter that is not properly presented to him during an in person setting.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Dear Ms. Wierzbicki,

Thank you for the clarification regarding the Local Rules for setting hearings.

To ensure the record is clear, I have filed two critical documents:

1. **Notice of Void Vexatious Litigant Orders** (filed 4/12/26); and
2. **Notice and Objection to In-Person Setting** (filed 4/14/26).

As a threshold matter, the **Notice of Void Orders** highlights that the January 21, 2025 order was entered after the trial court's plenary power had expired, making it void *ab initio* under *In re Florance*. Because the vacatur of a void order is a ministerial duty that can (and must) be performed by any court at any time, could you please clarify if the Judge intends to rule on this threshold jurisdictional issue **prior** to requiring a hearing on a Request for Permission to Proceed?

If the Court determines the order is void, the Chapter 11 permission process becomes moot.

However, if the Court intends to proceed with a hearing regardless:

Please be advised that I am awaiting the initiation of the **interactive process** required by Title II of the ADA. Because the Local Rules requiring in-person attendance constitute a "policy, practice, or procedure," my pending request seeks a **reasonable modification** of those rules to ensure meaningful access.

I look forward to the Court's guidance on:

1. Whether the "Voidness" of the order will be resolved as a threshold matter; and
2. The timeline for the ADA interactive process to determine an accessible format for any necessary proceedings.

Respectfully,

Kathryn "Katie" Copeland

(817) 789-8498

Author, [*Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*](#), American Bar Association (2026)

On Monday, April 13th, 2026 at 1:19 PM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Good afternoon,

I will set this matter on May 8 at 1:30 p.m.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Wierzbicki,

Please go ahead and set this matter for hearing on May 8th at 1:30 p.m.

Thank you.

Dawn Livingston, *Paralegal*

Kelly Decker Law, PLLC

6490 Camp Bowie Blvd.

Fort Worth, Texas 76116

www.kellydeckerlaw.com

T: (817) 348-9060

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From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Thursday, April 9, 2026 10:38 AM

To: Dawn Livingston <dawnl@kellydeckerlaw.com>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; Katie Copeland <katie@copelandlawtexas.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Good morning,

I am still holding this date until the close of business today. Under the local court rules, we must wait 2 business days to set which expires as of 5 p.m. today.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

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PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND “REPLY ALL” WHEN REPLYING.

From: Dawn Livingston <dawnl@kellydeckerlaw.com>
Sent: Thursday, April 9, 2026 9:21 AM
To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>
Cc: Kelly Decker <kelly@kellydeckerlaw.com>; Katie Copeland <katie@copelandlawtexas.com>
Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Wierzbicki,

Since Ms. Copeland has been nonresponsive to the hearing request and per the local rules, please go ahead and set this matter for hearing on May 8th at 1:30 p.m.

Thank you.

Dawn Livingston, *Paralegal*

Kelly Decker Law, PLLC

6490 Camp Bowie Blvd.

Fort Worth, Texas 76116

www.kellydeckerlaw.com

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From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>
Sent: Wednesday, April 8, 2026 9:56 AM
To: Katie Copeland <katie@copelandlawtexas.com>
Cc: Dawn Livingston <dawnl@kellydeckerlaw.com>; Kelly Decker <kelly@kellydeckerlaw.com>
Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Good morning,

Judge Newell does not review pleadings in advance that are not properly before him; thus we hold hearings in person.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

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From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Tuesday, April 7, 2026 11:35 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Dawn Livingston <dawnl@kellydeckerlaw.com>; Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

Dear Ms. Wierzbicki,

I want to clarify and expand on my prior ADA accommodation request to ensure it is accurately understood and considered.

Due to a documented brain injury affecting cognitive processing, working memory, and real-time communication, my limitation is not limited to physical presence. I am unable to effectively participate in fast-paced, real-time adversarial hearings—whether in person or via Zoom—without significant risk of being unable to respond, process, or protect my rights.

Accordingly, my requested accommodation is to proceed via written submission and written responses in lieu of live hearing.

Alternatively, if a hearing is required, a structured format that allows meaningful participation, including:

- advance submission of all arguments in writing,
- limited and clearly defined issues,
- allowance for written responses in place of real-time argument where necessary.

This request is necessary to ensure meaningful access to the proceeding, not merely physical or technical access.

To date, I have not received a determination on this request. The response indicating that the hearing will be in person does not address whether my accommodation request has been considered or denied.

I respectfully request:

- confirmation that my request is being evaluated under ADA procedures, and
- a written determination identifying what accommodation will be provided.

I am willing to provide supporting documentation if needed and to work cooperatively to identify an effective accommodation.

Thank you for your attention to this matter.

Respectfully,

Kathryn "Katie" Copeland

(817) 789-8498

Author, [Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts](#), American Bar Association (2026)

On Tuesday, April 7th, 2026 at 3:35 PM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Yes, this will be in person in Judge Newell's courtroom.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

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200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Wierzbicki,

I wanted to confirm that this is going to be an in-person hearing, correct?

Thank you.

Dawn Livingston, *Paralegal*

Kelly Decker Law, PLLC

6490 Camp Bowie Blvd.

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From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Tuesday, April 7, 2026 3:24 PM

To: Dawn Livingston <dawnl@kellydeckerlaw.com>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; katie@copelandlawtexas.com

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Thank you.

Ms. Copeland?

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

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From: Dawn Livingston <dawnl@kellydeckerlaw.com>

Sent: Tuesday, April 7, 2026 3:04 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; katie@copelandlawtexas.com

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

Good afternoon,

Ms. Decker is available May 8th in the morning or afternoon.

Thank you!

Dawn Livingston, *Paralegal*

Kelly Decker Law, PLLC

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Fort Worth, Texas 76116

www.kellydeckerlaw.com

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From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Tuesday, April 7, 2026 8:46:30 AM (UTC-06:00) Central Time (US & Canada)

To: Katie Copeland <katie@copelandlawtexas.com>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Good morning,

My apologies, yes, May 8 at 9:00 or 1:30.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, April 6, 2026 5:18 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

I am not available that day. Did you mean May 8 instead of May 9 since the 9th is a Saturday?

Sincerely,

Kathryn "Katie" Copeland

(817) 789-8498

Author, [*Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*](#), American Bar Association (2026)

On Monday, April 6th, 2026 at 11:55 AM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Thank you.

Ms. Copeland, will this date work for you?

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EXTERNAL EMAIL ALERT! Think Before You Click!

Dear Ms. Wierzbicki, I am representing myself and my law firm. I am available 4-22 at 9a or 1:30p.

KWD

From: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Sent: Monday, April 6, 2026 11:43 AM

To: Katie Copeland <katie@copelandlawtexas.com>; Kelly Decker <kelly@kellydeckerlaw.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

Good morning,

Currently I have the following available:

April 22 at 9:00 or 1:30

May 5 at 9:00 or 1:30

May 9 at 9:00 or 1:30

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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**DOCUMENTS COULD RESULT IN THE RESET OF YOUR
CASE*****

**PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL
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ALL” WHEN REPLYING.**

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Thursday, April 2, 2026 2:36 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request
(Copeland)

EXTERNAL EMAIL ALERT! Think Before You Click!

Kelly Decker at is the Defendant and she is representing herself (to my understanding).

Sincerely,

Kathryn "Katie" Copeland

(817) 789-8498

On Wednesday, April 1st, 2026 at 4:41 PM, Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>
wrote:

Good afternoon,

Per Judge Newell, please include all parties/attorneys so that I can provide dates for this setting no later than April 8, 2026. Failure to respond with all parties/attorneys included no later than April 8, 2026, your request for permission will be dismissed for want of prosecution on April 9, 2026.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND
“REPLY ALL” WHEN REPLYING.**

EXTERNAL EMAIL ALERT! Think Before You Click!

That's not really how this process works. Has the judge looked at this?

Katie

----- Original Message -----

On Friday, 03/20/26 at 10:13 Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov> wrote:

Good morning,

Please include all parties/attorneys so that I can provide dates for this setting.

Thank you,

Angie D. Wierzbicki

Court Coordinator

233rd Judicial District Court

(817) 884-2686

Tarrant County Family Law Center

200 E. Weatherford St., 5th Floor

Ft. Worth, TX 76196



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RULE DOCUMENTS COULD RESULT IN THE RESET OF
YOUR CASE*****

**PLEASE INCLUDE ALL ATTORNEYS OR PRO SE PARTIES ON ALL
EMAIL COMMUNICATION REGARDING DATES/SETTINGS, AND**

“REPLY ALL” WHEN REPLYING.

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Thursday, March 19, 2026 8:20 PM

To: Kenneth E. Newell <KENewell@tarrantcountytx.gov>; Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Subject: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

You don't often get email from katie@copelandlawtexas.com. [Learn why this is important](#)

EXTERNAL EMAIL ALERT! Think Before You Click!

Judge Newell and Ms. Wierzbicki,

My name is Kathryn M. Copeland (State Bar No. 24086056). I am appearing pro se in multiple Tarrant County matters and am writing to request permission under Tex. Civ. Prac. & Rem. Code § 11.102 and to formally request ADA accommodations necessary to access this process.

I. REQUEST FOR PERMISSION

I have prepared and am submitting a Motion for Permission to Maintain Litigation, along with a proposed order and supporting materials.

These filings address:

- the nature of the claims,
- the procedural posture, and
- the basis for permission under § 11.102(b).

I respectfully request that the Local Administrative Judge grant permission to allow these matters to proceed.

II. ADA ACCOMMODATION REQUEST

I was advised that I would need to appear in person to seek relief. Due to documented disability, I am unable to do so.

Accordingly, I formally request the following reasonable accommodations pursuant to Title II of the ADA:

- Permission to proceed via written submission (this email and attached filings);
 - A written or email response;
 - If a hearing is required, the ability to participate remotely (Zoom or telephone).
-

III. CONTEXT

I am acting in good faith to comply with Chapter 11 while preserving my rights.

The underlying vexatious litigant determinations raise substantial jurisdictional and procedural issues that are being addressed through appropriate legal channels. In the meantime, I am seeking permission to proceed so that my claims are not lost due to procedural barriers.

Because void orders cannot properly restrict access to the courts, I respectfully request that permission be granted to ensure meaningful access while these issues are resolved.

IV. REQUEST

I respectfully request:

- consideration of my Motion for Permission under § 11.102;
 - confirmation that my ADA accommodation request has been received; and
 - guidance on any additional procedural steps required.
-

Thank you for your time and consideration.

Respectfully submitted,

KATHRYN M. COPELAND

State Bar No. 24086056

katie@copelandlawtexas.com

(817) 789-8498

Licensed Texas Attorney appearing pro se

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, March 23, 2026 4:24 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Subject: Re: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From: Kelly Decker <kelly@kellydeckerlaw.com>

Sent: Monday, April 6, 2026 11:55 AM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>; Katie Copeland <katie@copelandlawtexas.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From: Dawn Livingston <dawnl@kellydeckerlaw.com>

Sent: Tuesday, April 7, 2026 3:33 PM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; katie@copelandlawtexas.com

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From: Dawn Livingston <dawnl@kellydeckerlaw.com>

Sent: Monday, April 13, 2026 9:06 AM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Kelly Decker <kelly@kellydeckerlaw.com>; Katie Copeland <katie@copelandlawtexas.com>

Subject: RE: RE: Request for Permission Under § 11.102 + ADA Accommodation Request (Copeland)

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Tuesday, April 14, 2026 1:52 AM

To: Angie D. Wierzbicki <ADWierzbicki@tarrantcountytx.gov>

Cc: Dawn Livingston <dawnl@kellydeckerlaw.com>; Kelly Decker <kelly@kellydeckerlaw.com>

Subject: Threshold Jurisdictional Issue & ADA Interactive Process – Cause No. 236-363132-25

119.74 KB 1 embedded image

image001.png 119.74 KB

**Exhibit 4 -
2026.04.20 PIA Follow-Up Title II
Clarification**

Re: Tarrant County District Attorney's Office - Records Request CDA-2026-897 Completed

From katie@copelandlawtexas.com <katie@copelandlawtexas.com>
To 84b0f237-3eb2-4f82-9420-78637ae74412.TarrantCountyTX@request.justfoia.com
CC pknguyen@tarrantcountytexas.gov, crsims@tarrantcountytexas.gov
Date Monday, April 20th, 2026 at 4:21 PM

Thank you. However, I was not referring to the employment aspect of ADA, but rather the Title II aspect of ADA, which applies to counties and courthouses (under the US Supreme Court case of Tennessee v Lane and the 5th Circuit opinion from Luke v Texas). For example, I have attached the City of Fort Worth's compliance documents.

For convenience, I have pasted my original request again below:

Request #CDA-2026-897

I request access to and copies of the following records:

1. ADA Title II Self- Evaluation (28 C.F.R. § 35.105) All records reflecting any self-evaluation conducted by Tarrant County and/or its courts in compliance with 28 C.F.R. § 35.105, including but not limited to: • The original self-evaluation required to be completed by January 26, 1993 • Any subsequent updates, revisions, or re-evaluations • All supporting materials associated with such evaluations
2. Required Components of the Self- Evaluation To the extent maintained, please include records showing: • Lists of individuals and organizations consulted (including disability advocacy groups) • Descriptions of areas examined and barriers identified • Descriptions of modifications made as a result of the evaluation
3. ADA Compliance Infrastructure Records sufficient to show: • The designation of any ADA Coordinator pursuant to 28 C.F.R. § 35.107 • Any ADA grievance procedures maintained by the County or its courts • Policies or procedures related to ADA Title II compliance in court operations
4. Record Retention and Availability • Any record retention policies applicable to ADA compliance documents, including self-evaluations • Any documentation explaining the absence, destruction, or unavailability of responsive records, if applicable _____

If there are no documents or individuals related to these request, please confirm.

Sincerely,
Kathryn "Katie" Copeland
(817) 789-8498

Author, [Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts](#), American Bar Association (2026)

On Monday, April 20th, 2026 at 1:19 PM, JustFOIA Notification <TarrantCountyTX@request.justfoia.com> wrote:

Dear Requestor,

The request [Request Number: CDA-2026-897](#) has been completed. Please click on the request link to download responsive documentation in the possession of the county. To the extent that you pose any questions, note that the PIA does not require a governmental body to answer questions and we respectfully decline to do so.

Thank you,



Tarrant County District Attorney's Office
401 W. Belknap
Fort Worth, TX 76196
(817) 884-1233
openrecords@tarrantcountytexas.gov

Powered by

3.88 MB 1 file attached

fort_worth_ada_compliance_plan_with-appendix_final.pdf 3.88 MB

City of Fort Worth

Americans with Disabilities Act (ADA) Compliance Plan



August 2024



Prepared by:

Kimley»Horn

Expect More. Experience Better.

Kimley-Horn
801 Cherry Street
Suite 1300, Unit 11
Fort Worth, Texas 76102

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Abbreviations

ADA – Americans with Disabilities Act

ADAAG – Americans with Disabilities Act Accessibility Guidelines

CFR – Code of Federal Regulations

CIP – Capital Improvement Projects

DBE – Disadvantaged Business Enterprise Program

DOJ – United States Department of Justice

DOT – United States Department of Transportation

FHWA – Federal Highway Administration

MCPD – Mayor’s Committee on Persons with Disabilities

MUTCD – Manual on Uniform Traffic Control Devices

PARD – Park & Recreation Department

PMD – Property Management Department

PROWAG – 2023 Public Rights-of-Way Accessibility Guidelines Final Rule

PSA – Programs, Services, and Activities

RAS – Registered Accessibility Specialist

TAC – Texas Administrative Code

TDLR – Texas Department of Licensing and Regulation

TxDOT – Texas Department of Transportation

TMUTCD – Texas Manual on Uniform Traffic Control Devices

TPW – Transportation & Public Works Department

1.0 Introduction

1.1 Purpose

The purpose of this Americans with Disabilities Act (ADA) Compliance Plan is to summarize the activities completed to date related to ADA compliance and to create a roadmap for the City of Fort Worth to complete a Self-Evaluation and develop an ADA Transition Plan.

In an effort to provide the most accurate information, this document includes language directly from official sources, including, but not limited to, U.S. Department of Justice (DOJ) Civil Rights Division (<https://www.ada.gov>), National ADA Network (<https://adata.org>), U.S. Access Board (<https://www.access-board.gov>), and the Texas Department of Licensing and Regulation (TDLR) (<https://tdlr.texas.gov>).

1.2 Legislative Mandate

The ADA is a comprehensive civil rights law prohibiting discrimination on the basis of a disability. The purpose of the law is to make sure that people with disabilities have the same right and opportunities as everyone else. The ADA protects the rights of individuals with disabilities in employment, access to state and local government services, places of public accommodation, transportation, and other important areas of life. The ADA also requires newly designed and constructed or altered state and local government facilities, public accommodations, and commercial facilities to be readily accessible to and usable by individuals with disabilities. The ADA consists of five titles:

- Title I: Employment
- Title II: State and Local Government
- Title III: Public Accommodations
- Title IV: Telecommunications
- Title V: Miscellaneous Provisions

The City of Fort Worth is obligated to observe all requirements of Title I in its employment practices; Title II in its programs, services, and activities; and any parts of Titles IV and V that apply to the City and its programs, services, and activities.

1.3 Title II Requirements

Title II has the broadest impact on the City and is published in the Code of Federal Regulations (CFR) at 28 CFR part 35. Per §35.130 (General provisions against discrimination), no qualified individual with a disability shall, on the basis of a disability, be excluded from participation in or be denied the benefits of the City's programs, services, or activities or be subjected to discrimination by the City.

Title II includes administrative requirements for all government entities employing more than 50 people. These administrative requirements are:

- **§35.105 Self-Evaluation**
 - Evaluate current services, policies, and practices.
 - Modify non-compliant services, policies, and practices.
 - Provide an opportunity for interested persons to participate in the self-evaluation process by submitting comments.
 - For at least 3 years following the self-evaluation, maintain on file and make available for public inspection: 1) list of intersected persons consulted; 2) description of areas examined and any problems identified; description of any modifications made.

- **§35.106 Notice**
 - Provide notice to the public about the City's obligations under the ADA and its applicability to the City's programs, services, or activities.
- **§35.107 Designation of Responsible Employee and Adoption of Grievance Procedures**
 - Designate at least one employee to coordinate City efforts to comply with and carry out its responsibilities (commonly called the ADA Coordinator).
 - Provide the name, office address, and telephone number of the ADA Coordinator to the public.
 - Investigate any complaint communicated to the City alleging noncompliance or alleging any actions that would be prohibited by the ADA.
 - Adopt and publish grievance procedures providing for prompt and equitable resolution of complaints alleging noncompliance or alleging any actions that would be prohibited by the ADA.
- **§35.150(d) Existing Facilities, Transition Plan**
 - Develop a transition plan setting forth the steps necessary to complete structural changes to achieve program accessibility.
 - Identify physical obstacles in City facilities that limit the accessibility of City programs or activities to individuals with disabilities.
 - Describe in detail the methods that will be used to make facilities accessible.
 - Specify the schedule for taking steps necessary to achieve compliance for each year of the transition period.
 - Indicate the official responsible for implementation of the plan.
 - Include a schedule for providing curb ramps or other sloped areas where pedestrian walks cross curbs.
 - Provide an opportunity for interested persons to participate in developing the transition plan by submitting comments. A copy of the transition plan shall be made available for public inspection.

1.4 New Construction and Alterations

If the start date for construction is on or after March 15, 2012, all newly constructed or altered state and local government facilities must comply with the 2010 ADA Standards. Before that date, the 1991 Standards (without the elevator exemption), the Uniform Federal Accessibility Guidelines, or the 2010 ADA Standards may be used for such projects when the start of construction commences on or after September 15, 2010.

The most recent standard is the 2010 ADA Standards, which sets the minimum requirements – both scoping and technical – for newly designed and constructed or altered state and local government facilities, public accommodations, and commercial facilities to be readily accessible to and usable by individuals with disabilities. It is effectuated from 28 Code of Federal Regulations (CFR) 35.151 and the 2004 Americans with Disabilities Act Accessibility Guidelines (ADAAG). However, the FHWA and DOJ recommend using PROWAG for designing facilities within the public rights-of-way as a best practice until it is adopted at the federal level.

Additionally, the Texas Department of Transportation (TxDOT) has adopted PROWAG and incorporated the guidelines into design standards for pedestrian facilities. It is recommended that the City of Fort Worth adopt PROWAG to become an enforceable document for all City projects within the public rights-of-way, regardless of its adoption status at the state and federal level.

Additional pages of Fort Worth
ADA Report removed for brevity,
but are available at

[https://www.fortworthtexas.gov/
departments/hr/civil-rights-
office/title-VI-accessibility-
accommodations](https://www.fortworthtexas.gov/departments/hr/civil-rights-office/title-VI-accessibility-accommodations)

Exhibit 5 - System Failure Summary

System Failure: ADA Accommodation Processing in Tarrant County Courts

Core Breakdown

1. No Intake System

There is no standardized method for submitting or tracking ADA accommodation requests.

2. No Evaluation Process

Requests are not analyzed under ADA standards (reasonable modification, undue burden, fundamental alteration).

3. No Decision-Maker

Responsibility is fragmented between staff and judiciary, resulting in no accountable authority.

4. No Written Determinations

Litigants do not receive formal decisions explaining what accommodation will be provided.

5. Hearings Proceed Regardless

Proceedings are scheduled and conducted without resolving access issues.

Observable Pattern

“The system processes hearings before it processes access.”

Legal Consequence	Practical Impact	Solution (Ready Now)
This structure: - violates Title II of the ADA - denies meaningful access to courts - creates avoidable procedural harm - exposes outcomes to challenge	- Disabled litigants cannot participate meaningfully - Compliance becomes guesswork - Disputes escalate unnecessarily - Courts inherit preventable procedural issues	Implement: - ADA coordinator designation - written intake + tracking system - standardized evaluation framework - required written determinations

Bottom Line

This is not a failure of individual actors. It is a structural absence of process.

**Exhibit 6 -
April 17, 2024 at 2:57 PM**

**RE: Tarrant County Public
Accommodation Request**

**Good Afternoon Ms. Copeland
Your ADA request would need to
go directly through the court your
case is assigned to.**

Subject: Re: Tarrant County Public Accommodation Request
Date: Friday, May 10, 2024 at 5:07:02 PM Central Daylight Time
From: Katie Copeland
To: ADM - ADA Requests
Attachments: 4.30.24 Respondents Second Amended Motion for ADA Accommodations.pdf, 11.10.23 First Amended Motion for Accommodation Under ADA and Federal Law.pdf

Hello,

I filed a motion for ADA accommodations, but many of them were denied. The Judge said that Tarrant County didn't have CART. I can't even recall which ones were approved and which were denied. We may need to talk to the county ADA attorney about this because I think the Court violated ADA.

Please help me find a resolution as I fear it had a major impact on my case.

Thank you,

Katie Copeland
817-789-8498

From: ADM - ADA Requests <ADARequests@tarrantcountytx.gov>
Date: Wednesday, April 17, 2024 at 2:57 PM
To: quinnandpoppy@gmail.com <quinnandpoppy@gmail.com>
Subject: RE: Tarrant County Public Accommodation Request

Good Afternoon Ms. Copeland

Your ADA request would need to go directly through the court your case is assigned to.

-----Original Message-----

From: noreply@tarrantcountytx.gov <noreply@tarrantcountytx.gov>
Sent: Friday, April 12, 2024 7:26 PM
To: ADM - ADA Requests <ADARequests@tarrantcountytx.gov>
Subject: Tarrant County Public Accommodation Request

You have received a new public accommodation request form.

Full Name:
Kathryn Copeland

Email Address:
quinnandpoppy@gmail.com

Home Phone:
8177898498

Work Phone:

Street Address:
405 Crawford St. #2145

City, State, Zip:
Fort Worth

Accommodation Requested:
To Whom It May Concern,

I am requesting accommodations under the Americans with Disabilities Act for equitable access to services, programs, and activities offered by Tarrant County, Texas, specifically in relation to my ongoing legal proceedings. Due to my medical conditions, which include cognitive function, hypermobile Ehlers-Danlos Syndrome, and other comorbidities, I face substantial barriers in a standard legal process environment.

I kindly request the following accommodations:

Written submissions in lieu of oral arguments, to accommodate communication challenges.

Permission to stay seated while addressing the court.

Allowing more frequent 10-15 minute breaks during proceedings for health management.

A slower pace for speaking and raising objections.

Extended time allocations for presenting my case as I have not been getting equal time and it takes me longer to process and communicate. Ex: If the other side gets 60 minutes, I would need 90 minutes.

Additional time for responding to future court filings.

Access to audio recordings and written transcripts of hearings, with financial consideration for my limited means. I urgently need the transcripts of the hearings that have occurred since 11/13/24 as I am being denied fundamental rights without reasons or explanations. (See transcript of 4/4/24 hearing that I paid \$664 to obtain where I asked many of these questions.) Appointment of legal counsel to assist with safeguarding my civil rights, referencing the 14th Amendment of the US Constitution, Texas Rule of Civil Procedure 680 and Texas Family Code 105. Ex: I was entitled to a hearing within 14 days of an ex parte TRO with extraordinary relief that separated me and my daughters, but I was not provided a hearing for 13 months. It is happening again, as I have not had my children since November 12, 2023, despite there being no evidence of risk of harm, inadequate pleadings, insufficient notice, and lack of equal access to participating in the legal process due to my disabilities.

Extended preparation time before trial currently set on May 6-7, 2024 for attorney retention.

A review of trial pleadings by an appointed judge for clarity on issues to be addressed at trial.

Permission to use a recording device for personal reference post-proceedings.

The presence of a support person at counsel table to assist with managing physical and cognitive needs, including frequent breaks for understanding.

Court documents provided in large print or audio format.

Use of Communication Access Realtime Translation (CART) for real-time transcription.
Oversight by a judge familiar with ADA accommodations, ensuring adherence.
A transcript of the 2/12/24 hearing, which is estimated to cost \$1,800.
Consideration for reasonable modifications to courtroom practices to aid my participation.
Avoidance of aggressive cross-examination approach to reduce stress, brain flooding, and PTSD.
Explanation of legal terms in plain language.
Waiver of costs for obtaining Reporter's and Clerk's Records, as per my Statement of Inability to Pay.
If my rights are not reinstated before the next scheduled visit on 4/20/24, I request revision of "supervised visitation" terms to a less stressful environment, potentially at my home.

Your attention to these matters is crucial for my effective participation and is greatly appreciated. For implementation of these accommodations, I can provide specific information on devices and services if necessary.

Sincerely,

Kathryn Copeland

**Exhibit 7 -
ADA Accommodation Request Site is
not ADA Compliant**



TARRANT COUNTY PUBLIC ACCOMMODATION REQUEST

State the accommodation(s) you are requesting for any services, programs or activities made available

Elements must only use supported ARIA attributes

1 ▾

◀ ◁ 1 of 1 ▷ ▶

🔍 Highlight ↻ Share Issue



TARRANT COUNTY PUBLIC ACCOMMODATION REQUEST

State the accommodation(s) you are requesting for any services, programs or activities made available

1 ▼

1 ▼

1 of 1



TARRANT COUNTY PUBLIC ACCOMMODATION REQUEST

State the accommodation(s) you are requesting for any services, programs or activities made available

Total Issues: 6

1

 **Share Issue**

[more information](#)

<p>

Element has insufficient color contrast of 3.54 (foreground color: #888888, background color: #ffffff, font size: 10.5pt (14px), font weight: bold). Expected contrast ratio of 4.5:1

Related Node

<

wcag143

PGAA-321

Chrome

File

Edit

View

History

Bookmarks

Profiles

Tab

Window

Help

axe DevTools Browser Extensi x Request Accommodation x Frames must have an accessi x Westlaw Precision x +

Ask Gemini

tarrantcountytx.gov/en/county/website-use/request-ada-accommodation/request-accommodation.html?linklocation=Go%20to%... ☆

Language About Tarrant Contact Us Directory Locations



TARRANT COUNTY

TEXAS

▶ Government

▶ Employment

▶ Doing Business

▶ Our Community

▶ How Do I...

▶ OpenBooks

TARRANT COUNTY PUBLIC ACCOMMODATION REQUEST

Please fill out the following form and press submit. Information contained within this form is considered confidential, and will only be provided to the parties involved in the evaluation process.

Full Name*

Email Address

Home Phone*

Work Phone

Street Address*

City, State, Zip*

State the accommodation(s) you are requesting for any services, programs or activities made available

DevTools

axe-core 4.11.1

Sign up / Sign in

start new scan

Total Issues: 6

Elements must meet minimum color contrast ratio thresholds

1

Found: Automatically Impact: serious cat.color wcag2aa wcag143 TTv5 TT13.c EN-301-549 EN-9.1.4.3 ACT RGAAv4 RGAA-3.2.1 Found on: 4/7/2026 at 3:31 PM

Frames must have an accessible name

1

<< < 1 of 1 > >>

Highlight Share Issue

Ensure <iframe> and <frame> elements have an accessible name more information

Element Location: #aemFormFrame

<iframe id="aemFormFrame" src="/content/main/en/cou..." style="width: 100%; overflo... data-form-page-path="/content/forms/af/t a..." scrolling="yes">

To solve this problem, you need to fix at least (1) of the following:

• Element has no title attribute

• aria-label attribute does not exist or is empty

• aria-labelledby attribute does not exist, references elements that do not exist or references elements that are empty



TARRANT COUNTY PUBLIC ACCOMMODATION REQUEST

State the accommodation(s) you are requesting for any services, programs or activities made available



start new scan

Total Issues: 6

1 ▼

- Element has no title attribute
- aria-label attribute does not exist or is empty
- aria-labelledby attribute does not exist, references elements that do not exist or references elements that are empty
- Element's default semantics were not overridden with role="none" or role="presentation"

Found: Automatically Impact: serious cat.text-alternatives wcag2a
wcag412 section508 section508.22.i TTv5 TT12.d EN-301-549
EN-9.4.1.2 RGAAv4 RGAA-2.1.1 Found on: 4/7/2026 at 3:31 PM

1 ▼

1 of 1

 Highlight
 Share Issue

Ensure the order of headings is semantically correct

[more information](#)

Element Location: **h3**

TARRANT COUNTY, TEXAS



TARRANT COUNTY PUBLIC ACCOMMODATION REQUEST

State the accommodation(s) you are requesting for any services, programs or activities made available

Heading levels should only increase by one

</>

Heading order invalid

Found on: 4/1/2026 at 3:31 PM

All page content should be contained by landmarks

2

> >>

 Share Issue

[more information](#) 

</>

 <td id="gs_tti50" class="gsib_a"> |



TARRANT COUNTY PUBLIC ACCOMMODATION REQUEST

State the accommodation(s) you are requesting for any services, programs or activities made available

Found on: 4/7/2026 at 3:31 PM

**Exhibit 8 -
Election ADA Failure**

Accessibility Concern – Curbside Voting Signage (Grapevine Public Library)

From katie@copelandlawtexas.com <katie@copelandlawtexas.com>

To Electionsinfo@tarrantcountytx.gov

BCC ahsu@mhlegalgroup.com

Date Tuesday, March 3rd, 2026 at 3:11 PM

To Whom It May Concern,

I am writing to report an accessibility concern at the Grapevine Public Library polling location today.

When I arrived to vote, there were no visible signs posted indicating a designated curbside voting space or providing a phone number or other method to request curbside assistance. All accessible parking spaces were occupied at the time.

Under Texas Election Code § 64.009, a voter who is physically unable to enter a polling place without assistance or with a likelihood of injury to the voter's health may request that an election officer deliver a ballot to the voter at the entrance or curb. Further, § 64.009(a-1) requires that each polling place reserve a space at least the size of one parking space for curbside voting and clearly mark it with signage indicating it is reserved for curbside voting and displaying, in large readable type, a phone number the voter may call or text to request assistance (or alternatively provide a button/intercom mechanism).

Because no such signage or clearly designated curbside space was visible, I called the Tarrant County voter assistance number. The automated system indicated I was sixth in line. After waiting on hold, I spoke with a representative who provided this email address for submitting an informal complaint.

I had to leave to attend a scheduled medical appointment in Dallas and was therefore unable to remain on hold further or cast my ballot at that time. I am concerned that the absence of required curbside signage may prevent or discourage voters with disabilities from exercising their right to vote, particularly those who cannot wait on extended phone holds.

Please confirm:

1. Whether the Grapevine Public Library polling location was required to have curbside voting signage in compliance with Texas Election Code § 64.009(a-1);
2. Whether such signage was in place at the time referenced above; and
3. What corrective action, if any, will be taken to ensure compliance for the remainder of the voting period.

I also request confirmation of the procedure available to me if I return before polls close and require curbside voting assistance.

Thank you for your prompt attention to this matter.

Sincerely,

Kathryn "Katie" Copeland

(817) 789-8498

Exhibit 9 -

**September 2025 County
Response to Open Records
Request to County Judge =
\$3,544.20 for 150 hours of
labor (suggesting compliance
system and required
documents do not exist)**

Subject: Tarrant County District Attorney's Office - Public Information Act Requests CDA-2025-1665, CDA-2025-1666, CDA-2025-1667, CDA-2025-1669, CDA-2025-1670 - Notice of Costs
Date: Wednesday, September 10, 2025 at 3:54:26 PM Central Daylight Time
From: Paul Nguyen (Tarrant County, TX)
To: quinnandpoppy@gmail.com
CC: pknguyen@tarrantcountytx.gov, bdrives@tarrantcountytx.gov
Attachments: ATT00001.png, CDA-2025-1665 1666 1667 1669 1670 - COPELAND - Written Itemized Statement of Anticipated Costs.pdf



Dear Requestor Kathryn Copeland,

On Monday August 20, 2025, the undersigned received your submitted requests under the Public Information Act (PIA) seeking information maintained by the Tarrant County District Attorney's Office. On Tuesday, August 25, 2025, the undersigned received your 1st written response to our 1st request for clarification and narrowing on each of your requests. On Monday, September 1, 2025, all Tarrant County offices were closed in observance of Labor Day.

Please be advised that there are costs involved in fulfilling your PIA request. The PIA authorizes the District Attorney's Office to charge \$.10 per page, \$28.50 per hour of programming, \$15.00 per hour for labor / personnel costs associated with fulfilling a request, 20% of personnel costs for overhead, \$10.00 per recording of body worn camera, and \$1.00 per full minute of body worn camera or audio footage. Other costs may apply depending on what is being requested. These cost rules are set out in Title 1, Texas Administrative Code, Chapter 70.

If you are still interested in obtaining the information in possession of the District Attorney's Office, please see the attached itemized *Written Itemized Statement of Anticipated Costs*.

The attached is an estimate only. If the estimated cost is more than the actual cost incurred by the District Attorney's Office, you will be refunded accordingly. There may be less costly methods of viewing the records. Please feel free to contact the office anytime if you wish to discuss alternative methods; or, if you would like to discuss how the Criminal District Attorney's Office may lower its cost estimate; or if you believe that the District Attorney's Office has made an error or misunderstood your request, please give us a call.

If the District Attorney's Office later determines, before it makes the copy or the paper record available, that the estimated charges will exceed the charges detailed in their attached itemized cost estimate by twenty (20) percent or more, the District Attorney's Office will send you an updated statement that details all estimated charges that will be imposed, including any allowable charges for labor or personnel costs as required by Section 552.2615(b) Texas Government Code. Further, if no responsive records are located your payment will be refunded.

Please respond to this itemized cost estimate from the District Attorney's Office within ten (10) business days and include the following information:

- (1) your choice of your mailing, facsimile transmission or electronic mail address; and
- (2) that you either accept the estimated charges; or you are modifying your request; or, you have sent a complaint to the Texas Attorney General alleging that you are being overcharged. See Section 552.2615(a)(3) and (b) Texas Government Code.

If you do not respond in writing within ten (10) business days from the date of this itemized cost estimate as outlined, your request will be considered automatically withdrawn, Section 552.2615(b) Texas Gov Code.

For your convenience, complaints regarding overcharges may be made to the following:

Office of the Attorney General
Cost Hotline at (512) 475-2497
Toll-Free at 1-888-672-6787

If you agree to the charges set forth herein, please forward your firm check, cashier's check or money order payable and

delivered to as follows:

\$3,544.20 payable to the

Tarrant County District Attorney's Office
Attn: Civil Division - Open Records
401 W. Belknap St, 9th Floor
Fort Worth, TX 76196

If paying in cash, exact change must be submitted. Debit or credit card payments are not accepted.

Your written response to this itemized cost estimate may be sent by regular U.S. mail, electronic mail, and facsimile or in person through any of the following points of contact:

Paul Nguyen, Assistant District Attorney
District Attorney's Office

Tim Curry Criminal Justice Center, Civil Division, 9th Floor
401 West Belknap
Fort Worth, Texas 76196-0201
Facsimile (817)884-1675

E-Mail – pknguyen@tarrantcountytx.gov

E-MAIL- OpenRecords@tarrantcountytx.gov

PLEASE REPLY TO ALL IF RESPONDING TO THIS EMAIL.

If you have any questions or comments concerning the attached itemized cost estimate from the District Attorney's Office, please call me at 817.884.1233.

Attachment: Written Itemized Statement of Anticipated Costs.

Powered by



WRITTEN ITEMIZED STATEMENT OF ANTICIPATED COSTS

Governmental Body / Department: Tarrant County District Attorney's Office

Request Number: CDA-2025-1665, CDA-2025-1666, CDA-2025-1667, CDA-2025-1669, CDA-2025-1670

Requestor: Kathryn Copeland

Original Date Requests Received: Monday August 10, 2025 (After business hours on Saturday August 9, 2025)

Date of Most Recent Clarification Response Received: Tuesday August 26, 2025 (After business hours on Monday August 25, 2025)

**On Monday, September 1, 2025, all Tarrant County offices were closed in observance of Labor Day. Pursuant to Texas Government Code section 662.003(c), Labor Day, the first Monday in September, is statutorily defined in Texas Government Code section 662.003(a) as a national holiday for purposes of Texas Government Code section 552.0031(f).*

Subject of Request:

CDA-2025-1665

Pursuant to the Texas Public Information Act, please provide copies of all ADA Title II accommodation requests submitted to Tarrant County and individual courts (including court coordinators) for court users, jurors, witnesses, or litigants from January 1, 2020, to present, along with:

- All responses, denials, or grants of such requests
- Any associated correspondence or internal notes
- Final disposition or outcome of the request

This request includes, but is not limited to, electronic and paper records, emails, memoranda, and any logs or tracking systems used to record ADA requests.

1st Clarification:

I would like to clarify my request CDA-2025-1665 as follows:

1. Date Range: Please use January 1, 2022 to present.
2. ADA Scope: Please limit to ADA Title II (court user/public access) and exclude ADA Title I (employee accommodations).
3. Correspondence: By "correspondence," I mean emails, memoranda, or letters. Please limit the search to communications involving:
 - o The Tarrant County ADA Coordinator(s) listed on the County's website,
 - o The District Clerk's ADA Coordinator,
 - o Any County ADA staff in the Records Management Division.

Please use the following search terms (up to 20): "ADA accommodations," "Title II," "disability access," "court access," "reasonable accommodation," "denied," "denial," "approved," "approval," "modified," "modification," "interactive process," "ADA coordinator," "equal access."

4. Judiciary Records: I understand the Public Information Act does not apply to judicial records under Rule 12. My intent is to obtain any ADA Title II accommodation requests and related records maintained by Tarrant County itself, even if the underlying request concerned access to court proceedings.

CDA-2025-1666

Please provide any reports, audits, meeting minutes, or communications from January 1, 2020, to present between Tarrant County court administration and the Texas Office of Court Administration (OCA) regarding:

- ADA Title II compliance
- Handling of ADA accommodation requests for court services through the county and through the courts individually
- Development or implementation of the ADA Benchbook or other accessibility initiatives

1st Clarification

I would like to clarify my request CDA-2025-1666 as follows:

1. Date Range: Please use January 1, 202 to present.
2. ADA Scope: Please limit to ADA Title II (court access/public participation), excluding ADA Title I (employment).
3. Entity: My intent is to request records maintained by the Tarrant County Administrator's Office (Administrator Chandler Merritt and staff) concerning communications with the Texas Office of Court Administration (OCA) regarding ADA Title II compliance, accommodation requests, or accessibility initiatives.
4. Communications: By "communications," I mean emails, memoranda, or letters. Please limit to communications between:
 - o Group 1: Chandler Merritt (County Administrator) and staff in his office
 - o Group 2: OCA ADA or accessibility staff
5. Key Terms: Please use the following key terms: "ADA accommodations," "Title II," "disability access," "court access," "reasonable accommodation," "denied," "denial," "approved," "approval," "modified," "modification," "interactive process," "ADA coordinator," "equal access," "ADA Benchbook."

CDA-2025-1667

Pursuant to the Texas Public Information Act, I request the following records from the Office of the County Judge for the period January 1, 2019 to present:

1. All ADA Title II accommodation requests received by the County Judge's office relating to court access, proceedings, or participation (including communications with the Office of Court Administration regarding such requests).
2. All records reflecting the decision or outcome of those requests, including approvals, denials, and modifications.
3. Any ADA policies, procedures, or internal guidance used by the County Judge's office to process such requests.
4. All correspondence between the County Judge's office and any judge, clerk, or county department concerning ADA accommodations or disability access to the courts.

1st Clarification:

I would like to clarify my request as follows:

1. Date Range: Please use January 1, 2022 to present as the timeframe.

2. ADA Scope: Please limit the request to ADA Title II records concerning access to courts and participation in proceedings.
3. Correspondence: By “correspondence,” I mean emails, memoranda, or letters. On the other end of communications with Judge O’Hare or his office staff, please limit to:
 - o The Tarrant County District Clerk’s ADA coordinator;
 - o The Tarrant County Courts ADA coordinator (if distinct);
 - o The Office of Court Administration (ADA contacts); and
 - o Any other ADA coordinators in county departments involved with processing court-related accommodation requests.
 - o I wonder if there is any training on the matter of ADA accommodations in the legal atmosphere being done and by whom. Of course, communications discussing a lack of such training or oversight are also incredibly important. I predict there is a lack of information, structure, and oversight of ADA requests.
4. Key Terms: Please use the following key terms for the search:
 - o “ADA accommodations”
 - o “Title II”
 - o “disability access”
 - o “court access”
 - o “reasonable accommodation”
 - o “denied” OR “denial”
 - o “approved” OR “approval”
 - o “modified” OR “modification”
 - o “interactive process”
 - o “ADA coordinator”
 - o “equal access”
- o I am also particularly interested in disorders involving communication and cognition.

CDA-2025-1669

Pursuant to the Texas Public Information Act, please provide the following records from the County Clerk’s office for the period January 1, 2019 to present:

1. All ADA Title II accommodation requests received regarding access to county-level courts, probate courts, or related records divisions.
2. Documentation of how each request was processed and resolved.
3. Any ADA-related policies, procedures, or staff training materials maintained by the County Clerk’s office.
4. All correspondence with judges, court administrators, or other agencies regarding ADA accommodation requests. Please send responses in electronic format where possible.

1st Clarification:

I would like to clarify my request CDA-2025-1669 as follows:

1. Date Range: Please use January 1, 2022 to present.
2. ADA Scope: Please limit to ADA Title II (court user/public access), excluding ADA Title I (employment).
3. Correspondence: By “correspondence,” I mean emails, memoranda, or letters. Please limit to communications between:

- o Group 1: The County Clerk and County Clerk's ADA coordinator/staff.
 - o Group 2: Judges, court coordinators, court administrators, OCA ADA staff, and the Tarrant County ADA Coordinator.
4. Key Terms: Please use the following search terms: "ADA accommodations," "Title II," "disability access," "court access," "reasonable accommodation," "denied," "denial," "approved," "approval," "modified," "modification," "interactive process," "ADA coordinator," "equal access," "ADA policy," "ADA training."
5. Divisions: Please include responsive records from both the Civil Division and the Criminal Division of the County Clerk's Office.

CDA-2025-1670

Pursuant to the Texas Public Information Act, I request copies of the following records from any and all departments, offices, and divisions of Tarrant County government, including but not limited to the County Judge's Office, Judge's Staff, District Clerk, County Clerk, Jury Services, Court Administration, and any ADA Coordinator(s):

1. All written policies, procedures, training materials, or guidance documents related to ADA accommodations in any Tarrant County court, jury service, or county office from January 1, 2019 to present.
2. Any records of formal or informal ADA accommodation requests (excluding personally identifying information of the requestor) received by any Tarrant County court, jury services, or county office from January 1, 2019 to present, including the date of request, the department or office involved, the nature of the accommodation requested, and the outcome or disposition of the request.
3. Any internal communications, memoranda, or directives from 2019 to present regarding ADA compliance, tracking, or reporting in Tarrant County courts or county offices.
4. Any statistical reports or summaries from 2019 to present showing the number, type, and outcome of ADA accommodation requests across Tarrant County courts or county offices.

1st Clarification:

I would like to clarify my request CDA-2025-1670 as follows:

1. Departments/Scope: Please narrow the request to the following offices and divisions:
 - o County Judge Tim O'Hare's Office
 - o County Administrator's Office (Chandler Merritt and staff)
 - o Jury Services
 - o Tarrant County ADA Coordinator(s)
 - o Court Support / Specialty Programs / Business Office (the units created when Criminal Court Administration was reorganized)
2. Date Range: Please use January 1, 2022 to present.
3. ADA Scope: Please limit to ADA Title II (public/court-user access), excluding ADA Title I (employment).
4. Internal Communications: By "internal communications," I mean emails, memoranda, or directives within or between staff of the identified departments.
5. Individuals/Groups: Please limit communications to:

- o Group 1: County Judge Tim O'Hare and his staff, County Administrator Chandler Merritt and staff, Jury Services leadership, and County ADA Coordinator(s).
 - o Group 2: Judges, court coordinators, court administrators, OCA ADA staff, and relevant county department heads.
6. Key Terms: Please use the following search terms: "ADA accommodations," "Title II," "disability access," "court access," "reasonable accommodation," "denied," "denial," "approved," "approval," "modified," "modification," "interactive process," "ADA coordinator," "equal access," "ADA policy," "ADA training," "tracking," and "reporting."

Cost Estimate (Prior to the work being completed):

Estimated Programming Charge: 51 hours @ \$28.50 per Programming Hour = \$1,453.50
[Tex. Admin. Code Sec. 70.3(d)]

Estimated Labor Charge: 100 hours @ \$15.00 per Labor Hour = \$1,500
[Tex. Admin. Code Sec. 70.3(d)]

Estimated Overhead Charge: Total Labor Charge x \$.20 = \$590.70
[Tex. Admin. Code Sec. 70.3(e)(3)]

Total Estimated Cost to Requestor: \$3,544.20

Required Deposit of Anticipated Costs: 100% (\$3,544.20)
[Tex. Gov. Code Sec. 552.263(a)]

The Tarrant County District Attorney's Office, has more than 15 full-time employees at this time, has provided a charge estimated to exceed \$100, and has provided this written itemized statement pursuant to Tex. Gov. Code section 552.263(a).

Please refer to our corresponding letter in conjunction with this written statement of estimated anticipated costs for more information regarding responsibilities imposed on you as the requestor pursuant to Tex. Gov. Code section 552.2615.

.....

_____ Agrees to waive charges

 X Does not agree to waive charges

Date: 9-10-25

By: /s/ Paul Nguyen
Paul Nguyen
Authorized Representative of the Tarrant County Criminal District Attorney's Office

Exhibit 10 -

**July 2024
Attempt for Equal
Access to Justice**

Thursday, March 20, 2025 at 09:41:12 Central Daylight Time

Subject: RE: Tarrant County Public Accommodation Request
Date: Wednesday, July 24, 2024 at 2:18:33 PM Central Daylight Time
From: ADM - ADA Requests
To: Katie Copeland

Good afternoon, Ms. Copeland,

In response to your recent ADA Accommodation Request, Tarrant County's position remains the same. As previously stated, the County does not have control over a particular Judge's decision when a litigant seeks ADA accommodations that would modify court proceedings.

Because you indicated that you have filed suit against the County, please direct future correspondence regarding this issue to the Civil Division of the Tarrant County Criminal District Attorney's Office at (817) 884-1233.

From: Katie Copeland <quinnandpoppy@gmail.com>
Sent: Monday, July 22, 2024 4:43 PM
To: ADM - ADA Requests <ADARequests@tarrantcountytx.gov>
Subject: Re: Tarrant County Public Accommodation Request

EXTERNAL EMAIL ALERT! Think Before You Click!

Hello,

I have not received a response to this or other communications I have sent. As a resident of Tarrant County, it is essential that I be able to have equal access to justice as any other person. On July 12, 2024, I filed the attached *First Amended Complaint for Violation of Civil Rights and Renewed Motion for Injunctive Relief and Declaratory Judgment Due to Denial of ADA Accommodations and Civil Rights Violations* and included Tarrant County as a defendant. I would prefer to resolve matters outside of the courtroom, so I am hopeful to receive a response from someone soon.

I also just left a voicemail at (817) 212-6935 for Kevin.

Thank you,

Katie Copeland
817-789-8498

If the file is too large for this email, it can be found at this dropbox link:
<https://www.dropbox.com/scl/fi/l49dj1y14pl8erhemboei/7.12.24-First-Amended-Complaint.pdf?rlkey=n5g7exuny3publ8la57tykznm&dl=o>

From: Katie Copeland <quinnandpoppy@gmail.com>
Date: Tuesday, June 18, 2024 at 9:51 AM
To: ADM - ADA Requests <ADARequests@tarrantcountytx.gov>
Subject: Re: Tarrant County Public Accommodation Request

Dear Tarrant County ADA Coordinator,

Thank you for your prompt response regarding my ADA accommodation requests. However, I would like to address a few critical points and seek further clarification and assistance.

The relevant case law indicates that the judge, acting as an agent of Tarrant County, has responsibilities under the ADA when adjudicating accommodation requests. I recently consulted with the Office of the Governor's Committee on People with Disabilities, and they concurred that there seems to be a systemic issue with the denial of reasonable accommodations in courtrooms. I have filed complaints with both the Department of Justice and the State Commission on Judicial Conduct. Additionally, I have enlisted the support of my local representatives, including State Senator Kelly Hancock.

Despite these efforts, it appears that my only remedy might be to pursue legal action against the county. While this is not a step I take lightly, especially given my deep ties to Tarrant County, the protection of my civil rights and those of my children must take precedence.

To reiterate, my accommodation requests were denied by the presiding judge without proper consideration of my documented medical needs. This decision has significantly impeded my ability to effectively participate in the legal proceedings due to my multiple severe disabilities. The accommodations I requested, including Communication Access Realtime Translation (CART) and the use of a recording device, are essential for my cognitive impairments and were unjustly denied.

The involvement of a judge, who lacks medical expertise, in deciding the extent and impact of my disabilities is both inappropriate and discriminatory. This has resulted in a violation of ADA guidelines, which mandate reasonable modifications to policies, practices, and procedures to prevent discrimination.

Therefore, I request a thorough and impartial review of my accommodation needs by a qualified ADA officer, independent of the presiding judge, to ensure compliance with ADA standards and rectify the barriers I have faced.

I appreciate your attention to this matter and look forward to your assistance in ensuring that my rights are upheld.

Sincerely,

Kathryn Copeland
405 Crawford St., #2145
Fort Worth, TX 76104
quinnandpoppy@gmail.com
817-789-8498

On Jun 18, 2024, at 8:09 AM, ADM - ADA Requests
<ADARequests@tarrantcountytx.gov> wrote:

Good morning, Ms. Copeland,

Tarrant County provides assistance for those with disabilities that prevent them from physically accessing and navigating the County's physical facilities and programs. The County does not have control over a particular Judge's decision when a litigant seeks ADA accommodations that would modify court proceedings. Such a decision relates to a judge's adjudicative responsibilities and is within a judge's sole discretion pursuant to judicial rules outlined within Chapter 24 of the Texas Gov't Code, as well as the Texas Code of Judicial Conduct and Texas Rules of Judicial Administration. You may find additional resources regarding your below inquiries by visiting the Texas Judicial Branch's website at www.txcourts.gov.

-----Original Message-----

From: noreply@tarrantcountytx.gov <noreply@tarrantcountytx.gov>
Sent: Friday, June 7, 2024 11:19 AM
To: ADM - ADA Requests <ADARequests@tarrantcountytx.gov>
Subject: Tarrant County Public Accommodation Request

You have received a new Review of Accommodatio Request form.

Reference Number:
Request went through ADARequests@tarrantcountytx.gov

Full Name:
Kathryn Copeland

Email Address:
quinnandpoppy@gmail.com

Home Phone:
8177898498

Work Phone:

Street Address:

405 Crawford St. #2145

City, State, Zip:

Fort Worth

Reason Requested:

I disagree with the response to my ADA accommodation request because the handling and denial of my request by the presiding judge were not in accordance with the ADA guidelines and demonstrated a significant lack of understanding and sensitivity towards my disabilities. My initial request was submitted through the Tarrant County website, which did not specify an ADA officer. Instead, my request was directed to and decided by the judge overseeing my case.

The judge, acting as an agent of Tarrant County, denied several of my reasonable accommodation requests, which severely impacted my ability to effectively participate in the legal proceedings. The accommodations requested were essential due to my multiple severe disabilities, including hypermobile Ehlers-Danlos syndrome (hEDS), a vestibular schwannoma (brain tumor), mast cell activation syndrome (MCAS), median arcuate ligament syndrome (MALS), postural orthostatic tachycardia syndrome (POTS), and cognitive impairments due to long COVID.

Specific Issues with the Response:

Lack of Proper Accommodation: Despite my detailed explanation of my needs, several critical accommodations were denied or inadequately provided. For instance, my request for Communication Access Realtime Translation (CART) for real-time transcription and the use of a recording device for personal reference were denied, significantly impairing my ability to follow and participate in court proceedings.

Inappropriate Handling by the Judge: It is inappropriate for a judge, who is not a medical professional, to opine on the extent and impact of my disabilities. This overreach not only shows a lack of expertise but also introduces bias and discrimination into the accommodation decision process. The judge's decision did not adequately consider my documented medical needs, which are supported by extensive medical records and expert testimony.

Violation of ADA Guidelines: The denial of my accommodations appears to be in direct violation of the ADA, which requires public entities to make reasonable modifications to their policies, practices, and procedures to avoid discrimination. The judge's actions did not meet these requirements, resulting in a significant barrier to my access to justice.

Retaliation and Bias: There is evidence suggesting that the judge's decision was influenced by bias and possibly retaliatory motives, as I had previously sought to disqualify this judge for misconduct. This history further underscores the need for a fair and impartial review by an appropriate ADA officer rather than the presiding judge.

Sources and Devices:

Communication Access Realtime Translation (CART): A real-time transcription service that would have allowed me to read spoken words instantly during the proceedings, which is crucial for my cognitive impairments.

Recording Device: To accurately capture the proceedings for my personal review, considering my cognitive limitations.

Support Person: A reasonable request to have a support person present to assist with my cognitive and physical needs during the proceedings.

Given these issues, I request a thorough and impartial review of my accommodation needs by a qualified ADA officer, independent of the presiding judge, to ensure compliance with ADA standards and to rectify the discrimination and barriers I have faced.

Thank you for your attention to this critical matter.

Sincerely,
Katie Copeland